

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

-----X
ANGEL MARTINEZ,

Plaintiff

- against -

**THE CITY OF NEW YORK and
DETECTIVE KRISTOPHER PERSAUD
(Shield# 003285),**

Defendants.

-----X

Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Queens, New York
August 15, 2022



THE LAW OFFICE OF KAWAN A. LOVELACE
By: Kawan A. Lovelace, Esq.
Attorney for Plaintiff
72-11 Austin Street, #303
Forest Hills, New York 11375
(718) 662-8265

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

=====X
ANGEL MARTINEZ,

Plaintiff

**Plaintiff,
Index No.
Verified Complaint**

- against -

**THE CITY OF NEW YORK and
DETECTIVE KRISTOPHER PERSAUD
(Shield# 003285),**

Defendants.

=====X

Plaintiff ANGEL MARTINEZ, by his attorneys THE LAW OFFICE OF KAWAN A. LOVELACE, by KAWAN A. LOVELACE, ESQ., principal, complaining of the Defendant, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff ANGEL MARTINEZ was a resident of Bronx County in the City and State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendant DETECTIVE KRISTOPHER PERSAUD, Shield No. 003285 (DET. PERSAUD) was and is a police officer employed by Defendants.

BACKGROUND

5. On February 2, 2022, without cause or provocation, Defendants, including DET. PERSAUD, a Police Officer with Defendant NEW YORK CITY POLICE DEPARTMENT, intentionally and falsely accused Plaintiff of having committed the crime of Criminal Possession of a Weapon in the Second Degree and related offenses.
6. On February 2, 2022, at approximately 7:00 a.m., in the vicinity of 3789 East Tremont Avenue in Bronx County, State of New York, New York City Police Officers, including DET. PERSAUD, intentionally handcuffed Plaintiff and placed Plaintiff under arrest without just cause or provocation, and with reckless and negligent disregard for the truth.
7. Next, Plaintiff was taken to a police precinct in Bronx County.
8. Plaintiff was forced to remain in the precinct cell until Plaintiff was removed to Bronx Central Booking.
9. On February 3, 2022, at approximately 9:00 p.m., Plaintiff was released from Central Booking without appearing before a Judge and without being prosecuted for any crime or offense.
10. Plaintiff was unlawfully detained for approximately thirty-nine (39) hours.

PROCEDURAL POSTURE

11. On February 14, 2022, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the

claim arose, and the items of damage and injuries sustained so far as was then determinable.

12. More than thirty days have elapsed since service of said notice, prior to the commencement of this action, and defendant CITY has failed to pay or adjust this claim.

13. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.

14. A 50-H hearing has been held.

15. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

16. Paragraphs 1-15 are incorporated by reference as fully set forth herein.

17. The Defendants, including DET. PERSAUD, their agents, servants, and employees, arrested and confined Plaintiff, as described in paragraphs 5-10, and intended to confine Plaintiff. Plaintiff was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

18. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty and the ability to enjoy life while he was imprisoned. Plaintiff also suffered emotional distress, humiliation and fear, intimidation for Plaintiff's safety, and loss of wages.

SECOND CAUSE OF ACTION: ABUSE OF PROCESS

19. Paragraphs 1-18 are incorporated by reference as though fully set forth herein.

20. In arresting Plaintiff, the Defendants, including DET. PERSAUD, were motivated by an ulterior purpose to do harm, without justification, or economic or social excuse.

21. In arresting Plaintiff as described in paragraphs 5-20, the arresting NYPD officers sought either a detriment to Plaintiff or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.

22. As a result of Defendants' abuse of process, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of wages and enjoyment of life, and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: ASSAULT

23. Paragraphs 1-22 are incorporated by reference as though fully set forth herein.

24. DET. PERSAUD, acting as the agent, servant and employee of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact when he approached Plaintiff, grabbed, and handcuffed Plaintiff.

25. As a result of being assaulted by DET. PERSAUD, Plaintiff sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: BATTERY

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.

27. When Defendants, including DET. PERSAUD, their agents, servants, and employees grabbed Plaintiff, searched Plaintiff, and arrested Plaintiff, they subjected Plaintiff to a harmful or offensive bodily contact. Defendants, including

DET. PERSAUD, their agents, servants, and employees intended to make that contact without the consent of Plaintiff.

28. As a result of being battered by DET. PERSAUD, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

29. Paragraphs 1-28 are incorporated by reference as though fully set forth herein.

30. Defendant CITY, through its agents, servants, and employees, including POLICE, had the responsibility for supervising, disciplining, evaluating, and training of the NYPD officers involved in this matter, including DET. PERSAUD.

31. Defendant CITY and POLICE have grossly failed to train and properly supervise its police officers, particularly the police officers involved herein, regarding the laws of arrest, search, and seizure.

32. Defendant CITY and POLICE were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or probable cause.

33. The foregoing acts, omissions, and systematic failures are customs and policies of Defendant CITY which caused its police officers to illegally search and seize, falsely arrest, assault, and batter Plaintiff.

34. As a result of the negligence of Defendant, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of wages and enjoyment of life, and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendant, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorney's fees and costs for bringing this case, and punitive damages.

Dated: Queens, New York
August 15, 2022

Yours, etc.,

THE LAW OFFICE OF KAWAN A. LOVELACE



By: Kawan A. Lovelace, Esq.

Attorney for Plaintiff
72-11 Austin Street, #303
Forest Hills, NY 11375
(718) 662-8265

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX****Index No.**

Purchased _____

-----X
ANGEL MARTINEZ,**VERIFICATION**

Plaintiff

-against-

**THE CITY OF NEW YORK and
DETECTIVE KRISTOPHER PERSAUD
(Shield# 003285),**Defendants.
-----X

I, **KAWAN A. LOVELACE**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Queens, NY
August 15, 2022



KAWAN A. LOVELACE, ESQ.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

Index No:

ANGEL MARTINEZ,

Plaintiff

-against-

**THE CITY OF NEW YORK and
DETECTIVE KRISTOPHER PERSAUD
(Shield# 003285),**

Defendants.

SUMMONS & COMPLAINT

**Law Office of Kawan A. Lovelace
Attorney for Plaintiff
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(718) 662-8265**

**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007**